

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #12	CCRB Case #: 202102952	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Sunday, 05/16/2021 8:15 AM	Location of Incident: § 87(2)(b)	Precinct: 18	18 Mo. SOL 11/16/2022	EO SOL 11/16/2022	
Date/Time CV Reported Sun, 05/16/2021 2:47 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sun, 05/16/2021 2:47 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DTS Paul Robinson	01399	931061	MTN PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Omar Camelo	03455	941492	MTN PCT

Officer(s)	Allegation	Investigator Recommendation
A.DTS Paul Robinson	Abuse: Detective Paul Robinson made a sexually suggestive remark to § 87(2)(b)	§ 87(2)(b)

Case Summary

On May 16, 2021, § 87(2)(b) called the CCRB and filed this complaint via the Call Processing System.

On May 16, 2021, at approximately 8:15 a.m., while working at the Emergency Department of Mount Sinai West Hospital in Manhattan, § 87(2)(b) rose from a chair that she had been sitting in. Det. Paul Robinson of the 18th Precinct approached § 87(2)(b) and asked her if he could sit in the chair. § 87(2)(b) refused, stating that she would return to the chair. Det. Robinson said, “Well, you can come sit on my lap” (**Allegation A -Abuse of Authority: Sexual Misconduct (Sexual Harassment, verbal)**, § 87(2)(g)). Det. Robinson did not say anything else. No arrests were made and no summonses were issued.

No video footage was recovered in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Paul Robinson made a sexually suggestive remark to § 87(2)(b)

§ 87(2)(b) stated to the CCRB (Board Review 01) that on May 16, 2021, at approximately 8:15 a.m., she was working as § 87(2)(b) in Manhattan. § 87(2)(b) sat in a chair and spoke with an unidentified male coworker, whose name she did not know but thought was included in a written statement she provided to the hospital. § 87(2)(b) noticed that a patient required assistance and rose from her chair. Det. Paul Robinson of the 18th Precinct approached § 87(2)(b). § 87(2)(b) thought that Det. Robinson had been guarding a prisoner in the hospital. Det. Robinson asked § 87(2)(b) if he could sit in the chair from which she had stood. § 87(2)(b) refused this, stating that she would return to the chair. Det. Robinson said, “Well, you can come sit on my lap.” § 87(2)(b) did not respond and returned to her work duties. She later realized what the statement could have meant, felt “disgusted,” and confronted Det. Robinson, informing him of how she felt. § 87(2)(b) stated to the CCRB that she made a contemporaneous complaint to the charge nurse in the hospital and drafted a four-page written document in the process. She later placed a call to the 18th Precinct stationhouse and provided the same complaint to the desk sergeant. After the incident concluded, one of § 87(2)(b)'s coworkers informed her that officers had come to the hospital, and Det. Robinson left with them.

§ 87(2)(b) provided her contemporaneous written complaint (Board Review 03) to the CCRB. The contents of the written complaint are consistent with § 87(2)(b)'s CCRB statement and add no additional material details.

Det. Robinson stated to the CCRB (Board Review 02) that he did not recall being present at § 87(2)(b) on May 16, 2021, at the time of this incident. Det. Robinson did not recall having a minor dispute or conversation with hospital staff involving a chair at the location of the incident. He did not recall telling § 87(2)(b) anything to the effect of, “Well, you can sit on my lap.” Det. Robinson did not recall § 87(2)(b) later saying, “I feel like a piece of meat,” “My skin is crawling,” or “I’m nauseated.” Det. Robinson did not recall responding to those comments with “I didn’t mean it like that.” Det. Robinson stated to the CCRB that he would have remembered making such a statement and did not do so. Det. Robinson did not have any recollection of an incident occurring at that location or involving § 87(2)(b). Det. Robinson was not familiar with § 87(2)(b) in any context. Det. Robinson did not recall receiving a complaint from a member of the hospital staff and was not aware of any complaints related to this incident.

that were received by Sgt. Omar Camelo of the 18th Precinct. Det. Robinson did not speak with Sgt. Camelo regarding any complaints made by a member of hospital staff.

No video footage, internal documentation, or statement from the witness listed in § 87(2)(b)'s written complaint was received from § 87(2)(b). A member of the hospital's legal department there initially stated that such evidence would likely not be provided, and the legal department subsequently became unresponsive to multiple contact attempts. A subpoena was sent to § 87(2)(b) for video evidence, documentation associated with any complaint made by § 87(2)(b) and identifying and contact information for any witnesses to the incident.

Det. Robinson's memo book states that he was assigned to sector patrol on the date of this incident, and he made no other entries beyond being present for duty and ending his tour. IAB did not conduct a concurrent investigation related to this complaint.

On January 5, 2022, the Internal Affairs Bureau informed the investigation that IAB is not conducting a concurrent investigation into this incident.

§ 87(2)(g)

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 04).
- Det. Robinson has been a member of service for nineteen and has been a subject in 16 CCRB complaints and 43 allegations, of which three were substantiated:
 - 201801655 involved substantiated allegations of discourteous word, verbal sexual harassment, and sexual humiliation against Det. Robinson. The Board recommended Formalized Training, and the NYPD imposed Command Discipline A.

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of December 27, 2021, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards this to complaint (Board Review 05).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 12

Investigator:	<u>Chris Anderson</u>	<u>SI Chris Anderson</u>	<u>01/05/2022</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>Carlmais Johnson</u>	<u>IM Carlmais Johnson</u>	<u>January 5, 2022</u>
	Signature	Print Title & Name	Date

Reviewer:

Signature

Print Title & Name

Date